

26SMCV00891 26SMCV00891

County: los-angeles

Division: Civil Law and Motion

Department: 205

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Case Number: 26SMCV00891 Hearing Date: September 1, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

JOHN SCHACHT,

Plaintiff,

v.

LORRAINE MORTON, et al.,

Defendants.

Case No.: 26SMCV00891

Hearing Date: September 1, 2026

[TENTATIVE] order RE:

defendants' motion to strike

plaintiff's prayer for punitive

damages

BACKGROUND

This is a dog bite case. Plaintiff John Schacht alleges that Defendants Lorraine and Danielle Morton allowed “their dog to be off of their premises, not under their control and without being lawfully restrained by a substantial chain or leash.” Plaintiff claims he was “injured by the attack of said dog owned by Defendants in which Plaintiff was at lawfully.” Plaintiff further alleges that Defendants “knew that their dog had attacked and bit Plaintiff before and possibly other people.”

Plaintiff’s complaint alleges three claims for (1) strict liability, (2) negligence, and (3) violation of Los Angeles Municipal Code § 53.06.2. Plaintiff seeks general, special and punitive damages.

This hearing is on Defendants’ motion to strike Plaintiff’s punitive damages claim. Defendants argue that there are no facts alleged that would support a finding of malice, oppression or fraud, necessary to obtain punitive damages.

MEET AND CONFER

Code Civ. Proc. § 435.5 requires that before the filing of a motion to strike, the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion to strike. (Code Civ. Proc. § 435.5(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. §435.5(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing its meet and confer efforts. (Code Civ. Proc. §435.5(a)(3).) The Uber Defendants submit the Declaration of Robert Shiri. While the declaration itself does not say that the parties met and conferred in person or by telephone, the exhibit attached to the declaration references a telephone call between counsel. Accordingly, the Court concludes that Defendants have met their meet and confer obligations.

LEGAL STANDARD

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Defendants’ motion to strike is procedurally defective. “A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.” (Cal. Rules of Court, Rule 3.1322(a).) Here, while the motion to strike references paragraph 32 of the Complaint, it does not quote in full the specific portions of paragraph 32 that the motion seeks to strike. 2

Paragraph 32 of the Complaint states: “Plaintiff alleges that prior to December 2, 2025, Defendants, and each of them, knew of the dangerous dog’s propensities to attack people and other animals in public but failed to properly secure or sequester the dangerous dog prior to Plaintiff’ injuries as alleged herein. Defendants’ failure to remove the dangerous dog or properly secure or sequester the dangerous dog which caused Plaintiff’ injuries constituted a willful and deliberate failure to make

Plaintiff and others safe from Defendants' dangerous dog and further constituted conscious disregard for the health and safety of Plaintiff and others. The conduct of Defendants, and each of them, was despicable, willful and wanton, and in violation of California Civil Code §3294, entitling Plaintiff to exemplary and punitive damages."

It is unclear if Defendants seek to strike the entire paragraph or only portions thereof. For example, the first two sentences of paragraph 32 are similar to language in paragraph 31 which states: "Prior to the aforementioned incident, Defendants, and each of them knew that their dog had attacked and bit Plaintiff before and possibly other people. Defendants, and each of them, deliberately disregarded and ignored this dangerous condition of their vicious, aggressive and dangerous dog." Yet Defendants are not seeking to strike paragraph 31, which suggests that they intend to only strike the last sentence of paragraph 32.

CONCLUSION

For the foregoing reasons, the Court DENIES Defendants' motion to strike without prejudice, for failing to comply with Cal. Rules of Court, Rule 3.1322(a).

IT IS SO ORDERED.

DATED: September 1, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court